

STATE OF NEW YORK

4204--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 31, 2025

Introduced by M. of A. SAYEGH -- read once and referred to the Committee on Consumer Affairs and Protection -- recommitted to the Committee on Consumer Affairs and Protection in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to requiring that digital coupons are made available to consumers in paper form of identical value

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The general business law is amended by adding a new section
2 396-00 to read as follows:

3 § 396-00. Digital coupons; availability of paper coupons. 1. For
4 purposes of this section, the following terms shall have the following
5 meanings:

6 (a) "digital coupon" means a store voucher, rebate or similar instru-
7 ment that is offered to a consumer online through a website, mobile
8 application, or other online platform;

9 (b) "retail mercantile establishment" shall have the same meaning as
10 section two hundred seventeen of this chapter; and

11 (c) "online retailer" shall have the same meaning as section two
12 hundred seventeen of this chapter.

13 2. Every retail mercantile establishment selling or offering for sale
14 goods or services that offers a digital coupon shall make available to a
15 consumer a paper coupon of identical value.

16 3. This section shall not apply to online retailers operating exclu-
17 sively through websites, mobile applications or other online platforms
18 or to retail mercantile establishments offering a particular good for
19 sale only through a website, mobile application or other online plat-
20 form.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 4. The secretary of state may adopt rules and regulations necessary to
2 effectuate the purposes of this section.

3 5. Any person that violates the provisions of subdivision two of this
4 section shall be subject to a civil penalty of up to two hundred fifty
5 dollars for a first offense and up to five hundred dollars for any
6 subsequent offense. The provisions of this section shall be enforced
7 concurrently by the director or commissioner of a municipal consumer
8 affairs office, or by the town attorney, city corporation coun-
9 sel, or other lawful designee of a municipality or local government, and
10 all moneys collected thereunder shall be retained by such municipality
11 or local government.

12 § 2. This act shall take effect six months after it shall have become
13 a law. Effective immediately, the addition, amendment, and/or repeal of
14 any rule or regulation necessary for the implementation of this act on
15 its effective date are authorized to be made and completed on or before
16 such effective date.